

Multiple Choice (10 marks)

1. Who defined jurisprudence as the knowledge of things divine and human, the science of right and wrong
 - (a) Austin
 - (b) Ulpian
 - (c) Holland
 - (d) Allen
2. Which proposition below is the most powerful refutation of Bentham's felicific calculus?
 - (a) Happiness is less important than economic prosperity.
 - (b) It is impossible to calculate all the consequences of one's acts.
 - (c) Pain and pleasure are inevitable features of life.
 - (d) Utilitarianism fails to take account of differences in social background.
3. Lyotard's dictum 'I define postmodern as incredulity toward meta-narratives' means:
 - (a) Individual stories are suspect.
 - (b) The law is static.
 - (c) Universal values are meaningless.
 - (d) Literature reproduces repression.
4. Which case was the first to define the meaning of the doctrine of 'margin of appreciation' as applied by the European Court of Human Rights?
 - (a) Goodwin v UK (2002)
 - (b) Airey v Ireland (1979)
 - (c) Osman v UK (1998)
 - (d) Handyside v UK (1976)
5. What other criteria were imposed by the Badinter Commission on the former Yugoslav republics?
 - (a) The Commission required a commitment to submit disputes to the ICJ
 - (b) The Commission required a change in boundaries
 - (c) The Commission required a commitment to human rights and democracy
 - (d) The Commission required an exchange of ethnic populations

True / False (10 marks)

Answer True or False

6. True or False: There is an increasing recognition that retribution is fundamental to punishment because other justifications appear to have failed.
7. True or False: The Analytical School of jurisprudence asserts that law is primarily shaped by logical reasoning and systematic analysis.
8. True or False: The phrase suggests that all laws must prioritize legal formalities over ethical considerations.
9. True or False: Hart's distinction between 'being obliged' and 'having an obligation' illuminates the concept of a rule in legal theory.
10. True or False: Article 2(4) of the UN Charter prohibits all forms of interference in the domestic affairs of States.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the obligations of states during negotiations and analyze how these obligations ensure that negotiations are conducted in a meaningful manner.
12. Discuss the implications of ethical relativism on human rights and critically analyze how cognitivism provides a counterargument to this perspective within the realm of constitutional law.

End of Paper